

about it. Accordingly, and lacking any allegations that her medical condition was obvious, defendant correctly points out that it had no obligation to initiate an interactive process pursuant to the facts pleaded.

In opposition to the demurrer, plaintiff argues that her taking medical leave triggered an obligation for defendant “to inquire” whether she needed “further” reasonable accommodations upon return. Plaintiff does not cite authority for this position and the Court is unaware of any such standard. Absent some factual allegation about the defendant’s notice, plaintiff fails to plead that it failed to engage in good faith in the interactive process to determine reasonable accommodations.

The demurrer is sustained with respect to the fourth cause of action, with leave to amend.

C. Failure to Accommodate Disability (5th C/A)

Under the FEHA, an employer that fails to make reasonable accommodation for an employee's known physical disability engages in an unlawful employment practice. (*A.M. v. Albertsons, LLC* (2009) 178 Cal.App.4th 455, 463, citing Gov. Code, § 12940, subd. (m).) The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.)

Here, plaintiff fails to sufficiently allege a disability, or that defendant knew about it, as noted above. She also fails to allege any requested accommodation that defendant failed to provide. As noted in the demurrer, the complaint alleges that defendant *did* grant her medical leave, the only requested accommodation identified in the complaint.

In opposition to the demurrer, plaintiff argues that, while her request for accommodation was granted “on paper,” but was “negated” by her later being fired. This may amount to retaliation, discrimination, or wrongful termination, which are all separately alleged, but not a “de facto” failure to accommodate cause of action.

The demurrer is sustained with respect to the fifth cause of action, with leave to amend.

14. 9:00 AM CASE NUMBER: C25-03666
CASE NAME: CHRIS DAVIS VS. VIVINT SOLAR DEVELOPER, LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: VIVINT SOLAR DEVELOPER, LLC
TENTATIVE RULING:

Defendants Sunrun, Inc. (“Sunrun”) and Vivint Solar Developer, LLC (“Vivint”, together with Sunrun, “Defendants”) bring this demurrer to the complaint (“Complaint”) of plaintiff Chris Davis (“Plaintiff”). Defendants challenge Plaintiff’s: (1) first cause of action for breach of contract and express warranty; (2) second cause of action for breach of implied warranties; (3) third cause of action for rescission; (4) fourth cause of action for statutory relief for failure to pay arbitration fees; and (5) fifth cause of action for punitive damages.

For the reasons discussed below, Defendants’ demurrer is **OVERRULED** with respect to the argument regarding assignment of the claims herein, the argument regarding uncertainty, and the cause of

action for rescission, but the demurrer is **SUSTAINED** with leave to amend as to the causes of action for breach of contract, breach of implied warranty, failure to pay arbitration fees, and punitive damages. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Jeffrey R. Makin Decl., ¶¶ 2-4, Exhs. A-B; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Complaint

Plaintiff filed the instant Complaint in this matter on December 12, 2025. The Complaint alleges that on April 8, 2025, Gustavo Bauer (“Former Owner”), the former owner of real property located at 2424 Los Prados Way, Antioch, California (the “Property”), assigned all rights and claims held by him as against Defendants to Plaintiff, the current owner of the Property. (Complaint, ¶¶ 1-2.) The Former Owner entered into a solar energy contract (the “Agreement”) with Defendants on or about May 1, 2021. (*Id.* at ¶ 7.) Sunrun warranted the system, represented that it was safe, and undertook obligations to insure, maintain and repair the system throughout its 25-year term. (*Id.* at ¶ 8.) On September 13, 2025, a catastrophic fire occurred at the Property and the fire report identified the cause as electrical arcing, which Plaintiff alleges is consistent with an inverter or wiring failure from Sunrun’s system. (*Id.* at ¶¶ 9-10.) The fire burned 16 Italian cypress trees, a fence, and caused siding and structural damage. (*Id.* at ¶ 11.)

Plaintiff seeks not less than \$55,000 in compensatory damages, punitive damages, sanctions for

failing to pay arbitration fees, issue sanctions confirming Sunrun provided defective equipment, evidentiary sanctions relating to the sufficiency of the fire report to prove causation, attorney fees and costs, and interest. (Complaint, pp. 4-5.)

Discussion

The Court notes that the Opposition was filed on June 22, 2026, rather than when it was due on June 18, 2022. The Court will proceed to consider the Opposition but will request that Plaintiff file their papers in a timely manner moving forward.

The Assignment

Defendants argue that Plaintiff has no standing to file the instant Complaint because the assignment is ineffective on its face. (Demurrer, p. 8.) Defendants cite to Exhibit 2 attached to the Complaint, which contains the clause regarding assignment of the Agreement. (*Ibid.*) Defendant points out that assignment of the Agreement requires 15 days' notice to Defendants and their approval and that the assignment is thus facially ineffective. (*Ibid.*) Defendants argue that there is "no evidence" to suggest that the Former Owner obtained the consent of Defendants prior to the assignment, thus the assignment is ineffective. (*Id.* at p. 9.) Defendant cites to *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 980, which sustained a demurrer without leave to amend, after permitting three amendments, because "Heritage had failed to provide or allege an assignment agreement with sufficient particularity to demonstrate that the assignment of Monroy's promissory note included an intent to assign WMC's tort claims against the borrower." (*Ibid.*)

Plaintiff argues that the assignment transferred the causes of action arising from the AGREEMENT, not the Agreement. (Opposition, p. 4.) Plaintiff points to the assignment attached to the Complaint as Exhibit 1, which states that the assignment provides that it "pertains solely to the Claims arising from the Incident and does not affect the rights or obligations under the solar lease agreement . . . which shall be addressed separately." (*Ibid.*) Plaintiff points out that California treats a cause of action as property the owner can transfer, citing Civil Code, section 954, which provides that "[a] thing in action, arising out of the violation of a right of property, or out of an obligation, may be transferred by the owner." Plaintiff cites *Comunale v. Traders & General Ins. Co.* (1958) 50 Cal.2d 654, 661-662, which stated, "the policy which provides that an assignment of an interest under the policy shall be binding only if Traders consents thereto. However, it is well settled that such a provision does not preclude the transfer of a cause of action for damages for breach of a contract." Plaintiff further argues that the Agreement only limits assigning the Agreement itself, not claims arising from it. (Opposition, p.4.)

The Reply argues that Plaintiff disregards material terms of the Agreement that provide that if the original owner sells their interest in the Property and the new owner refuses to assume the Agreement, then the Agreement is deemed terminated. (Reply, pp. 3-4.) Defendants argue that the Complaint and Opposition both assert that Plaintiff owns the Property now and that the Agreement was either terminated or ineffectively assigned to Plaintiff, and either way Plaintiff's claims must fail. (*Id.* at pp. 4-5.)

The Court notes Plaintiff has alleged in the Complaint that "Plaintiff is the assignee of all rights and

claims held by former homeowner Gustavo Bauer, pursuant to a written Assignment of Rights executed on April 8, 2025.” (Complaint, ¶ 2.) Plaintiff has also attached the assignment to the Complaint as Exhibit 1. (Complaint, Exh. 1.) The assignment only pertains to causes of action arising from the fire. (*Ibid.*) The assignment also shows that the Former Owner was still the owner of the Property at the time the assignment was made. (*Ibid.*) The Court finds the allegations of the Complaint sufficient for pleading purposes to withstand a demurrer. (*Stanton v. Pratt* (1941) 18 Cal.2d 599, 602 [“[S]aid paragraph of the complaint also expressly alleged an assignment to the plaintiff of the agreements which form the main basis of the cause of action. We think the allegation was sufficient as against the demurrer.”]; *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 365 [“a hearing on demurrer cannot be turned into a contested evidentiary hearing.”].)

Defendants’ argument on Reply that the Agreement was terminated when the sale occurred because the Former Owner did not transfer the Agreement to the new owner or purchase the Solar System would not extinguish causes of action that arose prior to the Agreement being terminated.

Defendants’ demurrer to Plaintiff’s Complaint on the basis of the assignment is OVERRULED.

Breach of Contract

To state a claim for breach of contract, Plaintiff must allege, “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Defendants argue that “Plaintiff has failed to plead each of the required elements of a breach of contract action.” (Demurrer, p. 11; Reply, p. 6.) Plaintiff argues that “Bauer performed by entering the Agreement, and nothing alleges he failed to perform; performance or excuse is adequately shown.” (Opposition, pp. 6-7.)

The Court finds that Plaintiff has not pleaded his performance or excuse for nonperformance. His performance is more than simply entering the agreement, as the contract attached to the Complaint shows that he had monthly payment obligations for 25 years, starting at \$169.44 per month and ending at \$336.49 per month. (Complaint, Exh. 2, p. 50 [Home Improvement Agreement, p. 24].)

Defendants’ demurrer to Plaintiff’s cause of action for breach of contract is SUSTAINED with leave to amend.

Breach of Implied Warranty

To state a claim for breach of the implied warranty of merchantability in this case, a plaintiff must plead (1) that the plaintiff bought a consumer good from the defendant; (2) that at the time of purchase the defendant was in the business of selling that good to retail buyers; (3) that the consumer good was either (a) not of the same quality of those generally acceptable in the trade, (b) not fit for the ordinary purpose for which the goods are used, (c) was not adequately contained, packaged, and labeled, or (d) did not measure up to the promises of facts stated by the defendant; (4) that the plaintiff was harmed; and (5) that the defendants breach of the implied warranty was a

substantial factor in causing the harm. (See CACI No. 3210; *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1246.)

Defendants argue that Plaintiff has failed to plead “any” of the elements required to state a claim for breach of implied warranty of merchantability. (Demurrer, p. 11.) Plaintiff argues that the Complaint properly alleges breach of implied warranty and cites to paragraphs 23 and 24 of the Complaint. (Opposition, p. 7 [¶ 23 incorporates all prior paragraphs].) On reply, Defendants offer new arguments that were not made in the moving papers. (Reply, pp. 6-7 [arguing that this claim fails because energy is not a consumer good and the agreement disclaims implied warranties].) The Court will not consider the new arguments made for the first time on reply.

The Court finds that Plaintiff did not plead the second element, “that at the time of purchase the defendant was in the business of selling that good to retail buyers.” Paragraph 2 alleges that Defendants are “a business entity conducting substantial business in California,” but that is not sufficient. “[F]acts not alleged are presumed not to exist.” (*Kramer v. Intuit, Inc.* (2004) 121 Cal.App.4th 574, 578.)

Defendants’ demurrer to Plaintiff’s cause of action for breach of implied warranty is SUSTAINED with leave to amend.

Rescission

Civil Code section 1691 provides:

to effect a rescission a party to the contract must, promptly upon discovering the facts which entitle him to rescind if he is free from duress, menace, undue influence or disability and is aware of his right to rescind:

- (a) Give notice of rescission to the party as to whom he rescinds; and
- (b) Restore to the other party everything of value which he has received from him under the contract or offer to restore the same upon condition that the other party do likewise, unless the latter is unable or positively refuses to do so.

When notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.

Defendants argue that Plaintiff has failed to plead the requisite elements for rescission as per Civil Code section 1691, including notice and an offer to restore the other party. (Demurrer, p. 11; Reply, p. 7.) Plaintiff contends that although Plaintiff did not plead notice and restoration, the complaint serves as notice and further detail can be added by amendment, noting that this is not a reason to dismiss the claim at the pleading stage. (Opposition, p. 7.)

The Court finds that Plaintiff has properly pled the claim for rescission. The Code itself states that “[w]hen notice of rescission has not otherwise been given or an offer to restore the benefits received

under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.” (Code of Civ. Proc., § 1691.)

Here, despite Plaintiff not pleading notice or an offer to restore the benefits received under the Agreement, the code itself excuses that due to the fact that a pleading being served which seeks relief based on rescission (as the Complaint does here), is thus deemed to be the notice and offer.

Defendants’ demurrer to Plaintiff’s cause of action for rescission is OVERRULED.

Failure to Pay Arbitration Fees

Code of Civil Procedure section 1281.97, subdivision (a), provides that in a consumer arbitration that requires the drafter to pay certain fees and costs, when a consumer meets the filing requirements necessary to initiate an arbitration and the drafter does not paid the fees and costs within 30 days, the drafter is in material breach of the arbitration agreement and waives the right to compel arbitration. Subdivision (b) provides that if the drafter materially breaches the arbitration agreement, the consumer may: “(1) Withdraw the claim from arbitration and proceed in a court of appropriate jurisdiction. [or] (2) Compel arbitration in which the drafting party shall pay reasonable attorney’s fees and costs related to the arbitration.”

Defendant argues that this statute does not create a separate cause of action, it merely outlines procedural steps should a party fail to pay required arbitration fees. (Demurrer, p. 12; Reply p. 7.) They also argue that the statute is not satisfied here due to the ineffectiveness of the purported assignment. (*Id.* at p. 11.) Plaintiff argues that the Complaint properly alleges satisfaction of the statute, and notes that “[i]f the Court wants the request reframed, that is a matter for amendment, not dismissal.” (Opposition p. 7.)

The Court finds that Plaintiff’s claim for failure to pay arbitration fees is not a proper standalone cause of action, as the remedies identified in the statute speak for themselves.

Defendants’ demurrer to Plaintiff’s cause of action for punitive damages is SUSTAINED with leave to amend. Leave to amend is being granted due to the fact that these claims have not been struck from the Complaint and can be raised in the proper mechanism in the future should the need arise.

Punitive Damages

Defendants argue that the punitive damages claim is improper because they are based on a breach of contract claim and are not available for any of his causes of action. (Demurrer, p. 12; Reply, p. 8.) Plaintiff argues that punitive damages are a remedy and not a cause of action so the right tool to challenge them is a motion to strike, not a demurrer. (Opposition, p. 8.) Plaintiff further argues that there are allegations in the Complaint that support punitive damages, leaving live electrical components after the fire. (*Ibid.*)

The Court finds that there is no standalone cause of action for punitive damages. “There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294].” (*Grieves v.*

Superior Court (1984) 157 Cal.App.3d 159, 163-164.)

Defendants' demurrer to Plaintiff's cause of action for punitive damages is SUSTAINED with leave to amend. Leave to amend is being granted in that punitive damages have not been struck from the Complaint and may be raised in the proper mechanism in an amended complaint should they be warranted.

Uncertainty

" '[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.' " (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) " 'A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.' " (*Ibid.*) " '[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' " (*Ibid.*) "A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made." (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.)

Defendants argue that the Complaint fails for uncertainty because "the Complaint is wholly ambiguous and unintelligible as to Plaintiff's purported causes of action." (Demurrer, p. 12; Reply, pp. 8-9.) Plaintiff argues that "[u]ncertainty is a narrow, disfavored ground, reserved for pleadings so confusing the defendant cannot tell what it must respond to. . . That is not this Complaint." (Opposition, p. 8.)

The Court finds that although the Complaint here fails to allege facts sufficient to state certain causes of action, this is based on more of a failure to incorporate sufficient facts into the pleading and less as to ambiguities in the allegations actually made.

Defendants' demurrer to Plaintiff's Complaint on the basis of uncertainty is OVERRULED.

Ruling on the Demurrer

The Court **OVERRULES** Defendants' demurrer with respect to the argument regarding assignment of the claims herein, the argument regarding uncertainty, and the cause of action for rescission. The Court **SUSTAINS** Defendants' demurrer to the causes of action for breach of contract, breach of implied warranty, failure to pay arbitration fees, and punitive damages, with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

15. 9:00 AM CASE NUMBER: N26-0448
CASE NAME: CLAIM OF:RAYMOND HUDSON
*HEARING ON MINOR'S COMPROMISE
FILED BY: HUDSON, RACHEL
TENTATIVE RULING: